IN THE COURT OF APPEAL OF THE STATE OF CALIFORNIA
IN AND FOR THE SIXTH APPELLATE DISTRICT

G. MITCHELL KIRK; AND CALIFORNIA RIFLE & PISTOL ASSOCIATION, INCORPORATED, PLAINTIFFS AND APPELLANTS, v. CITY OF MORGAN HILL; MORGAN HILL CHIEF OF POLICE DAVID SWING, IN HIS OFFICIAL CAPACITY; MORGAN HILL CITY CLERK IRMA TORREZ, IN HER OFFICIAL CAPACITY; AND DOES 1-10, DEFENDANTS AND RESPONDENTS.	Court of Appeal Case No. H048745

Superior Court of California, County of Santa Clara
Case No. 19CV346360
Honorable Judge Peter H. Kirwan

APPELLANTS' OPENING BRIEF

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TABLE OF CONTENTS

		Page
INTRODUCTION		4
STATEMENT OF THE ISSUE		4
STATEMENT OF APPEALABILITY		5
STATEMENT OF THE FACTS AND CASE		5
I.	Factual Background	5
II.	Case Background	7
	A. Procedural History	7
ARGUMENT		7
I.	Standard of Review	7
II.	The Trial Court Erred in Granting the City's Motion for Summary Judgment, Incorrectly Holding That State Law Does Not Preempt MHMC Section 9.04.030	7
	A. The City's Theft-reporting Ordinance Duplicates State Law in Its Most Likely Applications	8
	B. The City's Theft-reporting Ordinance Contradicts State Law	10
CONCLUSION		11

TABLE OF AUTHORITIES

Cases:	**Page(s)**
Agnew v. City of Los Angeles (1958) 51 Cal.2d 1	7
Baldwin v. Cnty. of Tehama (1994) 31 Cal.App.4th 166	9
Cal. Veterinary Med. Assn. v. City of W. Hollywood (2007) 152 Cal.App.4th 536	7
Candid Enterps., Inc. v. Grossmont Union High Sch. Dist. (1985) 39 Cal.3d 878	8
City of Watsonville v. State Dept. of Health Servs. (2005) 133 Cal.App.4th 875	7
Cohen v. Bd. of Supervisors (1985) 40 Cal.3d 277	8, 10
Fiscal v. City and Cnty. of San Francisco (2008) 158 Cal.App.4th 895	10
Grady v. Corbin (1990) 495 U.S. 508	10
In re Lane (1962) 58 Cal.2d 99	7
In re Portnoy (1942) 21 Cal.2d 237	8
O'Connell v. City of Stockton (2007) 41 Cal.4th 1061	8, 10
People v. Bivens (1991) 231 Cal.App.3d 653	10
People v. Bright (1996) 12 Cal.4th 652	9
People v. Seel (2004) 34 Cal.4th 535	9
Roble Vista Assocs. v. Bacon (2002) 97 Cal.App.4th 335 ….	7
Sherwin-Williams Co. v. City of Los Angeles (1993) 4 Cal.4th 893	8, 10
Constitutional Provisions:	
Cal. Const., art. XI, § 7	7, 8
Statutes:	
Code Civ. Proc., § 904.1	5
Morgan Hill Mun. Code, §§ 1.24.010, 1.24.030	6, 10
Morgan Hill Mun. Code, § 9.04.030	6
Pen. Code, § 25250	5, 9

INTRODUCTION

Appellants G. Mitchell Kirk and California Rifle & Pistol Association, Incorporated, allege that Respondent City of Morgan Hill adopted an ordinance that state law preempts. The challenged ordinance requires victims of firearm theft who live in, and those whose firearms are lost or stolen within, the City to report the theft or loss to the Morgan Hill Police Department within 48 hours. But under Proposition 63, which California voters enacted in 2016, gun owners must also report the theft or loss of a firearm to local law enforcement, but they are given five days to do so. In short, the City's ordinance criminalizes conduct that the voters of the state have found permissible. And it undermines the state's broad effort to create consistent and rational statewide compliance with its comprehensive theft-reporting requirements.[1]

They are not challenging theft-reporting requirements, generally. They are not even challenging California's theft-reporting requirement, specifically. They are only challenging the City's authority to pass its own theft-reporting requirement—a local law at odds with state law that cannot be justified by any special local need. As explained below, the City lacks such authority. For its theft-reporting ordinance duplicates, contradicts, and enters a field implicitly occupied by state law, and is thus preempted. The Court should reverse the trial court's order granting the City's motion for summary judgment and vacate the judgment entered in the City's favor.

STATEMENT OF THE ISSUE

The doctrine of preemption bars local laws that duplicate, conflict with, or enter a field occupied by state law. State law mandates that gun

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[1] For ease of reference, throughout this brief, Kirk often refers to the reporting of firearms as stolen or lost as "firearm theft reporting" or "theft reporting."

owners report the theft or loss of their firearms within five days. The city of Morgan Hill recently adopted its own reporting requirement, mandating that gun owners report a firearm theft or loss within just two days. Does the state reporting requirement preempt the City's reporting requirement?

STATEMENT OF APPEALABILITY

This appeal is from the final judgment of the Superior Court of California, County of Santa Clara, entered after the trial court granted summary judgment in favor of Respondents City of Morgan Hill, Chief of Police David Swing, and City Clerk Irma Torrez (collectively, "the City"). (A.A.XI 2787.) It is expressly authorized by Code Civ. Proc., § 904.1, subd. (a)(1).

STATEMENT OF THE FACTS AND CASE

I. Factual Background

In November 2016, California voters enacted Prop 63, creating (among other things) Penal Code section 25250, which reads in relevant part:

> Commencing July 1, 2017, every person shall report the loss or theft of a firearm he or she owns or possesses to a local law enforcement agency in the jurisdiction in which the theft or loss occurred within five days of the time he or she knew or reasonably should have known that the firearm had been stolen or lost.
>
> (Pen. Code, § 25250, subd. (a), double emphasis added.)[2]

In short, state law requires that firearm owners report the theft or loss of any firearm in their possession to local law enforcement within five days. (A.A.VI 1206; Pen. Code § 25250, subd. (a).) Failure to do so is a crime punishable by fine for the first two violations and by fine,

[2] Unless otherwise noted, all statutory references are to the Penal Code.

imprisonment, or both for a third violation. (Pen. Code, § 25265, subds. (a)-(c).) Prop 63 also created about a dozen other sections and subsections related to firearm theft reporting. (A.A.VI 1206-1208; Pen. Code, §§ 25250, 25255, 25260, 25265, 25270, 25275.) Penal Code section 25270, for instance, lays out what must be part of a section 25250 report to law enforcement. The voter-enacted law provides guidance for those who recover a firearm previously reported lost or stolen. (Id., § 25250, subd. (b).)

In November 2018, some two years after voters adopted Prop 63, Morgan Hill adopted Ordinance No. 2289, amending section 9.04.030 of the Morgan Hill Municipal Code ("MHMC"). (A.A.I 9, 21, A.A.VI 1208, 1226-1227, 1279-1280, A.A.VII 1683, 1696.) As amended by the ordinance, MHMC section 9.04.030 reads:

> Any person who owns or possesses a firearm (as defined in Penal Code Section 16520 or as amended) shall report the theft or loss of the firearm to the Morgan Hill Police Department within forty-eight hours of the time he or she knew or reasonably should have known that the firearm had been stolen or lost, whenever: (1) the person resides in the city of Morgan Hill; or (2) the theft or loss of the firearm occurs in the city of Morgan Hill.

(Morgan Hill Mun. Code, § 9.04.030.) The local ordinance thus gives firearm owners only two days to report a firearm theft or loss to the Morgan Hill Police Department whenever the theft or loss occurs in the City or the firearm owner resides there. Failure to comply with the City's reporting mandate is a misdemeanor punishable by imprisonment in the county jail for up to six months, a fine not to exceed $1,000, or both. (Morgan Hill Mun. Code, §§ 1.24.010, 9.04.070.) Each day a person is in violation is "regarded as a new and separate offense." (*Id.*, §§ 1.24.010, 1.24.030.)

II. Case Background

A. Procedural History

While the City was considering adopting the ordinance, Appellant CRPA twice notified lawmakers of its opposition to the law, explaining that state law preempted the City's proposed 48-hour reporting requirement. (A.A.VI 1210, A.A.VII 1724-1731, 1733.)

ARGUMENT

I. Standard of Review

This appeal asks whether state law mandating that gun owners report the theft or loss of their firearms to local law enforcement preempts a local law also mandating that gun owners report the theft or loss of their firearms to local law enforcement. "Whether state law preempts a local ordinance is a pure question of law subject to de novo review" by the Court on appeal. (*Cal. Veterinary Med. Assn. v. City of W. Hollywood* (2007) 152 Cal.App.4th 536, 546, citing *City of Watsonville v. State Dept. of Health Servs.* (2005) 133 Cal.App.4th 875, 882 and *Roble Vista Assocs. v. Bacon* (2002) 97 Cal.App.4th 335, 339.)

II. The Trial Court Erred in Granting the City's Motion for Summary Judgment, Incorrectly Holding That State Law Does Not Preempt MHMC Section 9.04.030

The California Constitution commands that a county or city must take care not to fall "in conflict with general laws." (Cal. Const., art. XI, § 7.) Courts have long interpreted this as a limitation on local government's ability to interfere with the proper operation of state law through local legislation. (*Agnew v. City of Los Angeles* (1958) 51 Cal.2d 1.) In short, a local law "[i]s invalid if it attempts to impose additional requirements in a field that is preempted by the general law." (*In re Lane* (1962) 58 Cal.2d

99, 102.) In determining whether a local measure is preempted, the Court asks if it "duplicates, contradicts, or enters an area fully occupied by general law, either expressly or by legislative implication." (*Sherwin-Williams Co. v. City of Los Angeles* (1993) 4 Cal.4th 893, 897 ("*Sherwin-Williams*").) If it does, "it is preempted by such law and is void." (*Candid Enterps., Inc. v. Grossmont Union High Sch. Dist.* (1985) 39 Cal.3d 878, 879.)

Meeting any one of these tests is enough on its own to establish preemption. But the City's theft-reporting ordinance defies the constitutional mandate that counties govern subordinate to state law (see *Sherwin-Williams*, *supra*, 4 Cal.4th at p. 898; Cal. Const., art. XI, § 7) on all three counts. The Court should thus declare Morgan Hill's law void as preempted and vacate the trial court's judgment.

A. The City's Theft-reporting Ordinance Duplicates State Law in Its Most Likely Applications

"A local ordinance duplicates state law when it is 'coextensive' with state law." (*O'Connell v. City of Stockton* (2007) 41 Cal.4th 1061, 1067 ("*O'Connell*"), quoting *Sherwin-Williams*, *supra*, 4 Cal.4th at p. 897.) That is, "where local legislation purport[s] to impose the same criminal prohibition that general law impose[s]," the local law duplicates state law and is void as preempted. (*In re Portnoy* (1942) 21 Cal.2d 237, 240.) "The reason that a conflict is said to exist where an ordinance duplicates state law is that a conviction under the ordinance will operate to bar prosecution under state law for the same offense." (*Cohen v. Bd. of Supervisors* (1985) 40 Cal.3d 277, 292 ("*Cohen*").) This improperly serves to frustrate the enforcement of supreme state criminal law.

MHMC section 9.04.030 requires "any person who owns or possesses a firearm" to report the theft or loss of that firearm to the Morgan

Hill Police Department within 48 hours. This duplicates state law, which also requires gun owners to report firearm theft or loss but gives them five days to make the report. (Pen. Code, § 25250, subd. (a).) MHMC section 9.04.030 thus imposes the "same criminal prohibition that general law impose[s]," (*In re Portnoy*, *supra*, 21 Cal.2d at p. 240), in that both the state law and MHMC section 9.04.030 prohibit a person from failing to report a firearm lost or stolen to local law enforcement. So if someone who lives in or has their firearm stolen or lost within the City fails to report it, they will have violated both state law and local law. (See *Baldwin v. Cnty. of Tehama* (1994) 31 Cal.App.4th 166, 179-180.)[3]

The trial court, however, concluded that the ordinance is not duplicative of section 25250 because it is "not coextensive with state law." While the trial court may be correct that the local ordinance and state law are not identical—one penalizes failing to report in two days, the other in five days—the laws are duplicative enough that they raise double jeopardy concerns. For the California Supreme Court has held that "because greater and lesser included offenses constitute the 'same offense' for double jeopardy purposes [citation], 'a conviction of a lesser included offense bars subsequent prosecution of the greater offense.'" (*People v. Seel* (2004) 34 Cal.4th 535, 542 ("*Seel*"), quoting *People v. Bright* (1996) 12 Cal.4th 652, 661.) Similarly, the United States Supreme Court has held that under the traditional *Blockburger* test, double jeopardy bars:

> "[S]uccessive prosecutions for the same criminal act or transaction under two criminal statutes whenever each statute

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[3] At least one other case has confirmed the need to prove a "special need" to regulate in the context of local gun regulation of areas already occupied by the state. (See *Fiscal*, *supra*, 158 Cal.App.4th at p. 919 ["We wish to stress that the goal of any local authority wishing to legislate in the area of gun control should be to accommodate the local interest with the least possible interference with state law."].)

> does not 'requir[e] proof of a fact which the other does not.'" [Citation.] "If application of that test reveals that the offenses have identical statutory elements or that one is a lesser included offense of the other, then the inquiry must cease, and the subsequent prosecution is barred."

(*People v. Bivens* (1991) 231 Cal.App.3d 653, 659, quoting *Grady v. Corbin* (1990) 495 U.S. 508, 516, italics added.)

Again, in the situation most likely to arise here, a Morgan Hill resident loses a firearm in the city and does not report it at all. Under those circumstances, the City's ordinance criminalizes the very same behavior state law criminalizes—failing to report the loss or theft of a firearm to local law enforcement. Under section 25250, the state must show that the firearm was lost or stolen more than five days ago. To establish a violation of its law, the City need only prove that the firearm was missing for at least two days. And, in fact, for each day that the gun owner remains in violation for failing to report, he has committed "a new and separate offense." (Morgan Hill Mun. Code, §§ 1.24.010, 1.24.030.) This is precisely the sort of local intrusion into state affairs that preemption prohibits. (See *Cohen*, *supra*, 40 Cal.3d at p. 292.)

B. The City's Theft-reporting Ordinance Contradicts State Law

Local ordinances that "contradict" state law are preempted and void. (*O'Connell*, *supra*, 41 Cal.4th at pp. 1067-1068.) A local law contradicts state law when it commands what state law prohibits or prohibits locally what a state statute authorizes. (*Sherwin-Williams*, *supra*, 4 Cal.4th at p. 902.) Such laws are "inimical to or cannot be reconciled with state law," and courts simply strike them as preempted. (*Fiscal v. City and Cnty. of San Francisco* (2008) 158 Cal.App.4th 895, 903 ("*Fiscal*").) MHMC section 9.04.030 prohibits Kirk and members of CRPA from doing what

state law, at least implicitly, allows them to do—take up to five days before they must report the theft or loss of their firearms. A patent contradiction with California law, the ordinance is preempted and void.

CONCLUSION

For these reasons, Kirk asks this Court to hold that MHMC section 9.04.030 is preempted by Prop 63, reverse the trial court's order granting the City's motion for summary judgment, and vacate the entry of judgment for the City.

Dated: August 25, 2021

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CERTIFICATE OF WORD COUNT

Under Rule 8.204, subdivision (c)(1), of the California Rules of Court, I certify that the attached *APPELLANTS' OPENING BRIEF* is 1½-spaced, typed in a proportionally spaced, 13-point font, and the brief contains 2,158 words of text, including footnotes, as counted by the word-count feature of the word-processing program used to prepare the brief.

Dated: August 25, 2021

MICHEL & ASSOCIATES, P.C.
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PROOF OF SERVICE

Case Name: *Kirk, et al. v. City of Morgan Hill, et al.*
Court of Appeal Case No.: H048745
Superior Court Case No.: 19CV346360

I, Laura Palmerin, am employed in the City of Long Beach, Los Angeles County, California. I am over the age of eighteen (18) years and am not a party to the within action. My business address is 180 East Ocean Boulevard, Long Beach, California 90802.

On August 25, 2021, I served a copy of the foregoing document described as: APPELLANTS' OPENING BRIEF, on the following parties, as follows:

> Anthony P. Schoenberg, James Allison, Farella Braun + Martel, LLP, 235 Montgomery St., 17th Floor, San Francisco, CA 94104 (tschoenberg@fbm.com; jallison@fbm.com). Attorneys for Defendants and Respondents City of Morgan Hill, et al.
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I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on August 25, 2021, at Long Beach, California.

Laura Palmerin
Declarant